

CHAPTER 11.

An Act to make perpetual, subject to an amendment, the Special Constables Act, 1914; to provide for the employment of special constables in connection with Naval, Military and Air Force yards and stations; and to remove certain limitations on the appointment of special constables in Scotland. [7th June 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section one of the Special Constables Act, 1914, which confers power to make regulations with respect to special constables appointed during the war, shall have effect as though the words “during the present war” were omitted therefrom, and as though for the power thereby conferred to apply to special constables any of the provisions of the Police Acts, 1839 to 1910, or the corresponding Scottish enactments, there were substituted power so to apply any enactment for the time being in force relating to the county, borough, or metropolitan police, or in Scotland the county or burgh police.

Perpetuation
of 4 & 5
Geo. 5. c. 61.

(2) The reference to the Special Constables Act, 1914, in the First Schedule to the War Emergency Laws (Continuance) Act, 1920, is hereby repealed.

10 & 11
Geo. 5. c. 5.

(3) This section shall not apply to Northern Ireland.

2. Any Order in Council made after the passing of this Act under the Special Constables Act, 1914, as amended by this Act shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an Address is presented to His Majesty by either of those Houses within twenty-one days on which that House has sat next after any such Order has been laid before it praying that the regulations made thereby shall be annulled, His Majesty may thereupon by Order in Council annul the regulations, and the regulations so annulled shall forthwith become void, without prejudice

Orders in
Council to
be laid
before
Parliament.

to the validity of any proceedings which may in the meantime have been taken thereunder or to the making of any new regulations :

56 & 57 Vict.
c. 66. Provided that Orders in Council under the said Act shall not be deemed to be statutory rules within the meaning of section one of the Rules Publication Act, 1893.

Substitution
of special
constables
for metropo-
litan police
at armament
depôts, &c.
23 & 24 Vict.
c. 135.
4 & 5 Geo. 5.
c. 44.

3.—(1) Any two justices of the peace may appoint such persons as may be nominated for the purpose by the Admiralty, Army Council, or Air Council, to be special constables within the yards and stations and limits within which constables of the metropolitan police force may by virtue of the Metropolitan Police Act, 1860, or the Metropolitan Police (Employment in Scotland) Act, 1914, both as originally enacted and as applied to the Air Force, be employed ; and every person so appointed shall be sworn in by any such justices duly to execute the office of a constable within the places and limits aforesaid, and when so sworn in shall have the same powers and privileges, and be liable to the same duties and responsibilities as constables of the metropolitan police force have and are liable to under the said Acts.

(2) Special constables appointed under this section shall be under the exclusive control of the department on whose nomination they are appointed, and that department shall have power to suspend or terminate the appointment of any such special constable.

55 & 56 Vict.
c. 55.
20 & 21 Vict.
c. 72. (3) In the application of this section to Scotland references to any two justices of the peace shall be construed as references to the magistrates of a burgh or the standing joint committee of a county, as the case may be, and the reference to swearing in shall be read as a reference to making a declaration or taking an oath, as the case may be, in the form and manner prescribed in section seventy-nine of the Burgh Police (Scotland) Act, 1892, and section eleven of the Police (Scotland) Act, 1857, respectively.

Removal of
limitations
on appoint-
ment of
special
constables.

4. Section ninety-six of the Burgh Police (Scotland) Act, 1892 (which relates to the appointment of special constables), shall, both as originally enacted and as extended to counties by the Special Constables (Scotland) Act, 1914, have effect as if the words “ of or exceeding

the age of twenty years" were substituted for the words 4 & 5 Geo. 5.
 "between the ages of twenty and fifty" and the words c. 53.
 "for a period not exceeding six months" were omitted.

5. This Act may be cited as the Special Constables Act, 1923, and the Special Constables Act, 1914, and this Act may be cited together as the Special Constables Acts, 1914 and 1923, and sections ninety-six, ninety-seven, and ninety-eight of the Burgh Police (Scotland) Act, 1892, the Special Constables (Scotland) Act, 1914, and the Special Constables Act, 1914, and this Act as they apply to Scotland may be cited as the Special Constables (Scotland) Acts, 1892 to 1923. Short title.

CHAPTER 12.

An Act to prohibit the institution and prosecution of legal proceedings in respect of action taken under the Restoration of Order in Ireland Regulations, and to make provision as to claims for compensation by persons affected.

[7th June 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) No action or other legal proceeding whatsoever, whether civil or criminal, shall be instituted in any court of law against any person for, or on account of, or in respect of the issue before the passing of this Act and since the sixth day of December, nineteen hundred and twenty-two, of any order purporting to have been made in pursuance of regulation 14 B. made or purporting to have been made under the Restoration of Order in Ireland Act, 1920, or for, on account of, or in respect of any act done before the passing of this Act for the purpose of carrying any such order into effect; and if any such proceeding has been instituted, whether before or after the passing of this Act, it shall be

Indemnity
for action
taken under
Restoration
of Order
in Ireland
Regulations.

10 & 11
Geo. 5. c. 31.